

		Plaintiff to give notice.
10	Gill vs. Estate of Joan M. Gray	<u>Motion for Leave to Amend (re First Amended Complaint)</u> 1. Motion for Leave The court GRANTS Plaintiff POLLYANN M. GILL's unopposed motion for leave to file a First Amended Complaint. Generally, leave to amend should be liberally granted. (<i>Nestle v. Santa Monica</i> (1972) 6 Cal.3d 920, 939.) "[I]t is a rare case in which a court will be justified in refusing a party leave to amend his pleadings so that he may properly present his case. If the motion to amend is timely made and the granting of the motion will not prejudice the opposing party, it is error to refuse permission to amend and where the refusal also results in a party being deprived of the right to assert a meritorious cause of action or a meritorious defense, it is not only error but an abuse of discretion." (<i>Morgan v. Superior Court</i> (1959) 172 Cal.App.2d 527, 530 [internal citations and quotation marks omitted].) Plaintiff appears to have complied with the requirements of California Rules of Court, rule 3.1324 governing a motion for leave to amend. Plaintiff seeks leave to add a cause of action for battery and to seek punitive damages (among other forms of relief) in connection with that cause of action for battery. (Niven Decl., Exh. 2.) If delay in seeking the amendment has not misled or prejudiced the other side, the liberal policy of allowing amendments prevails. Indeed, it is an abuse of discretion to deny leave in such a case, even if sought as late as the time of trial. (<i>Higgins v. Del Faro</i> (1981) 123 CA3d 558, 564-565)